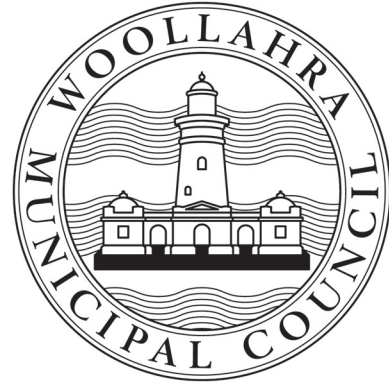




Part E ► General Controls for All Development

WOOLLAHRA DEVELOPMENT CONTROL PLAN 2015

Chapter E1

Parking and Access

Part E ► General Controls for All Development

CHAPTER E1 APPROVED ON 12 DECEMBER 2016
AND COMMENCED ON 21 DECEMBER 2016

Last amended on 23 May 2025

Chapter E1 ► Parking and Access

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E1.1 Introduction

Parking areas, garages and driveways must be carefully designed so that they do not detract from the appearance of the development and the surrounding streetscape. They should also be designed to limit the amount of impervious surfaces over a site and excavation required.

The chapter establishes the car parking and vehicle access requirements for development.

The parking generation rates for residential development are maximum rates, whereas the parking generation rates for non-residential development are minimum rates.

E1.1.1 Land where this chapter applies

This chapter applies to all land within the Woollahra Municipality.

E1.1.2 Development to which this chapter applies

This chapter applies to development that requires consent and may generate demand for parking, loading or other associated facilities.

This chapter adopts the land use definitions and terms of the Woollahra Local Environmental Plan 2014 (Woollahra LEP 2014). In doing so, it sometimes uses group terms and sub-terms. Where a land use fits into a group term but is also separately defined as a sub-term, the parking generation rate for the sub-term should be applied.

For example, the group term “food and drink premises” includes the sub-terms “restaurants”, “take away food premises” and “pubs”. This chapter contains a parking generation rate for both “food and drink premises” and “pubs”. If the development application is for a pub, the rate for a “pub” should be applied instead of the rate for the group term “food and drink premises”.

E1.1.3 Objectives

The objectives of this chapter are:

- 01 To minimise the amount and impact of vehicular traffic generated due to proposed development.
- 02 To ensure that development generating vehicular traffic makes adequate provision off street for the car parking and servicing needs of its occupants and users, including residents, employees, visitors and deliveries.
- 03 To ensure the safe and efficient movement of vehicles within, entering and leaving properties.

- 04 To minimise the environmental effects, particularly visual impact, of parked vehicles on the amenity of the municipality.
- 05 To ensure that access points to car parking areas are situated to minimise disruption of vehicle movement on the public road system.

E1.1.4 Relationship to other parts of the DCP

This chapter is to be read in conjunction with the other parts of the DCP that are relevant to the development proposal, including:

- ▶ Part B: General Residential.
- ▶ Part C: Heritage Conservation Areas.
- ▶ Part D: Business Centres.
- ▶ Part E: General Controls for All Development - this part contains chapters on Parking and Access, Stormwater and Flood Risk Management, Tree Management, Contaminated Land, Waste Management, Sustainability, Signage and Adaptable Housing.
- ▶ Part F: Land Use Specific Controls - this part contains chapters on Child Care Centres, Educational Establishments, Licensed Premises and Telecommunications.

Note, depending on the location of the proposed development, Part B: General Residential, Part C: Heritage Conservation Areas or Part D: Business Centres, must be considered with the parking generation rates in this chapter.

Parts B, C and D contain streetscape and other design controls relating to parking and driveways.

In some residential locations the maximum number of on-site parking spaces may not be able to be achieved because the parking would detrimentally impact on the character of the streetscape. The precinct controls in Parts B and C prevail over the residential parking generation rates in this chapter.

E1.1.5 Relationship to other documents

In implementing this DCP the following Australian Standards apply for the design of parking and loading facilities, unless otherwise specified:

- ▶ AS/NZS 2890.1 Part 1: Off-street car parking;
- ▶ AS 2890.2 Part 2: Off-street commercial vehicle facilities;
- ▶ AS 2890.3 Part 3: Bicycle parking;
- ▶ AS 2890.5 Part 5: On-street parking; and
- ▶ AS/NZS 2890.6 Part 6: Off-Street parking for people with disabilities.

E1.2 Preparing your development application

E1.2.1 Development applications and required information

Development applications are to be accompanied by dimensioned plans, drawn to scale, showing proposed locations and arrangements for:

- off-street parking;
- loading and unloading areas (where applicable);
- circulation of traffic within, into and out of the property;
- position and gradients of access aisles, entrances and exits;
- location of electric vehicle charging points and circuitry (where required); and
- landscaping.

Additional information

A traffic and parking report, prepared by a suitably qualified person, may be required by Council for certain developments, including:

- all traffic generating developments listed in Schedule 3 of the *State Environmental Planning Policy (Infrastructure) 2007*;
- supermarkets;
- shopping centres;
- child care centres;
- mixed use developments;
- residential flat buildings, manor houses, multi dwelling housing and multi dwelling housing (terraces);
- health services facilities (e.g. medical consulting rooms, medical centres and hospitals);
- community facilities;
- entertainment facilities (e.g. cinemas and theatres);
- recreation facility (indoor, major and outdoor facilities);
- function centres;
- tourist facilities;
- tourist and visitor accommodation (e.g. hotel or motel accommodation, serviced apartments);
- educational establishments;
- public car parks;
- places of public worship;
- premises licensed under the *Liquor Act 2007* of the *Registered Club Act 1976*;
- drive-in take-away food outlets; and
- service stations.

Applicants should also refer to requirements for information and referrals under the provisions of *State Environmental Planning Policy (Infrastructure) 2007* (Infrastructure SEPP). Refer to Council's Development Application Guide (DA Guide) for further information.

E1.2.2 Matters the consent authority will consider

Where premises are proposed to be used for more than one purpose, the parking provisions should satisfy the requirements of this chapter in relation to each use. Council may approve, or require, the reservation of a proportion of the total number of required spaces on-site for the use of specific occupants or visitors to a development.

In determining car parking provision for any development, including a change of use, Council will take into account the following matters:

- ▶ the scale and nature of the development;
- ▶ existing traffic generation associated with the site;
- ▶ traffic generation associated with the proposed development;
- ▶ traffic volumes on the road network in the area of the development and the capacity of the road network;
- ▶ impacts on traffic and pedestrian safety;
- ▶ impacts on residential amenity;
- ▶ for commercial development—the type of activities on the site, including allocation floor area for different uses associated with the commercial development e.g., area dedicated to back-of-house uses such as storage areas;
- ▶ for residential development—a proposal to accommodate a car share scheme parking space on the site or directly adjoining the site;
- ▶ methodologies to ameliorate traffic generation impacts (e.g. traffic calming);
- ▶ the availability of public parking (on-street and off-street) near the development;
- ▶ the availability of public transport to serve the development;
- ▶ the probable mode of transport of users to and from the development;
- ▶ the suitability of street lighting in the area;
- ▶ whether the development warrants special consideration because it is proposed for, or relates to, a heritage item;
- ▶ the characteristics of the streetscape and the site, particularly the subdivision pattern, topography, street design and width, street tree planting, on-street parking or loading spaces and any existing access arrangements; and
- ▶ construction method.

E1.2.3 Compliance with the parking controls

This chapter contains minimum parking generation rates for non-residential development and maximum rates for residential development.

However, to achieve environmentally acceptable solutions, every individual case needs to be considered on merit having regard to the circumstances of the proposal.

Non-compliance with the parking controls

Council may allow non-compliance with the requirements of this chapter in exceptional circumstances. The applicant will be required to demonstrate, to the satisfaction of Council, the exceptional circumstances relating to a particular development application which would warrant non-compliance with the requirements of this chapter.

In its consideration of any non-compliance, Council will have regard to the objectives of this chapter, as well as other relevant chapters, and the specific nature of the exceptional circumstances as they relate to the parking requirement.

Council must be satisfied that the development seeks to minimise and manage the impact of traffic generation, and does not unreasonably increase demand for on-street parking, having regard to the existing context and capacity. A traffic and parking report, prepared by a suitably qualified person, may need to be submitted with the development application to demonstrate this. The requirements of the report are specified in the DA Guide.

E1.2.4 Monetary contributions instead of required parking spaces

A monetary contribution may be required, or may be accepted, for a shortfall in car parking spaces for development in certain commercial centres. The Woollahra Section 94 Contributions Plan identifies the commercial centres where contributions apply and sets down the contribution rates.

When determining whether a monetary contribution is required, Council will consider the following matters:

- whether in terms of relevant design and operational standards it is physically possible to provide the total required number of car parking spaces, manoeuvring areas and access areas on-site;
 - whether long-stay car parking demand will be provided for on-site;
 - whether opportunities exist, or could be made available, for shared parking arrangements;
 - whether it is appropriate to establish additional ingress and egress points;
 - whether car parking on a particular site would be restricted or excluded altogether for reasons of pedestrian safety and comfort, or in order to minimise and avoid vehicle conflicts;
 - whether an otherwise environmentally acceptable development may be refused consent on the grounds of inability to satisfy the parking space requirements; and
 - the findings and recommendations of any traffic and parking study.
-

E1.3 How to determine the car parking rate

The number of car parking spaces to be provided on a site is determined by addressing the following parts of this DCP:

	Residential development	Non-residential development
Step 1	Go to Section E1.4 Residential parking : Identify the parking rate for your development type.	Go to Section 1.5.2 Non-residential parking generation rates : Identify the base generation parking rate applying to the land use that reflects your development.
Step 2	Go to the residential precinct controls in Part B of this DCP : Read the desired future character, streetscape and location of the garages controls that apply to your residential precinct. The provision of on-site car parking and garaging should not compromise the streetscape amenity.	Go to Section 1.5.3 Parking multipliers : Identify if a multiplier applies to the centre where your development is proposed. If yes, multiply the base parking generation rate by the multiplier. Round up to the nearest whole number for the required parking rate.
Step 3	Go to Section E1.6 Bicycle parking rates and Section E1.7 Motorcycle parking rates : Identify the bicycle and motorcycle parking rates for your development type.	Go to Section E1.6 Bicycle parking rates and Section E1.7 Motorcycle parking rates : Identify the bicycle and motorcycle parking rates for your development type.
Step 4	Go to Section E1.8 Variations to the parking generation rates : Determine if a variation to the parking rate applies. For example, the property may be a heritage item.	Go to Section E1.8 Variations to the parking generation rates : Determine if a variation to the parking rate applies. For example, the proposal may be a change of use and located in Oxford Street, Paddington.

Note: The steps above help determine the number of on-site parking spaces to be provided. You must consider these parking generation requirements in conjunction with the other controls and design requirements in this chapter.

E1.4 Residential parking

This section contains parking generation rates and design controls for parking in residential developments, including the residential component of mixed use development.

E1.4.1 Calculating required parking for residential uses

Residential parking generation rates

Table 1 set outs the parking generation rates for residential land uses. The rates identify the maximum number of parking spaces based on the type of residential development, and in some cases, the number of bedrooms in the development.

Variations to parking rates

In calculating the requirements for car parking provision, reference should also be made to the special provisions in Section E1.8 which identify circumstances where the requirements may vary in regards to:

- items of environmental heritage; and
- mixed use development.

E1.4.2 Residential parking generation rates

The parking generation rates in Table 1 below set the maximum number of parking spaces to be provided for residential development.

TABLE 1 Residential uses parking generation rates

Land use	Maximum parking generation rates
Low density residential	
Dwelling house	2 spaces ¹
Semi-detached dwelling	2 spaces per dwelling ¹
Dual occupancy	2 spaces per dwelling ¹

¹ The second space may be a tandem space subject to precinct and streetscape character considerations.

Land use	Maximum parking generation rates
Attached dwellings	
Attached dwelling located in a heritage conservation area	2 spaces per dwelling ^{1,2}
Attached dwelling not in a heritage conservation area	Same rates as for residential flat buildings and multi dwelling housing stated below ¹
Residential flat buildings, manor houses, multi dwelling housing, multi dwelling housing (terraces) and seniors housing (independent living units) <i>Spaces based on number of bedrooms per dwelling³</i>	
Studio apartment ⁴	0.5 space
1 bedroom	1 space
2 bedrooms	1.5 spaces
3 or more bedrooms	2 spaces
Visitors	0.25 spaces
Mixed use development (residential component) <i>Spaces based on number of bedrooms per dwelling³</i>	
1 bedroom or studio apartment ⁵	0.5 space
2 bedrooms	1 space
3 or more bedrooms	1.5 space
Visitors	0.2 spaces

Providing fewer spaces than the number calculated using the parking generation rates

The rates in Table 1 are maximum parking rates. The maximum number of parking spaces may not be achieved on a site depending on the site and its context.

In particular, the desired future character, streetscape and garages controls in the residential chapters of this DCP (Part B) take precedence over the numeric parking rates in this chapter.

² Onsite parking areas, parking structures and servicing areas such as loading facilities are not a mandatory requirement in heritage conservation areas. On-site car parking may only be permitted or required when the specified controls in chapters Part C, chapters C1 (Paddington HCA) C2 (Woollahra HCA) and C3 (Watsons Bay HCA) are satisfactorily met.

³ Round up to nearest whole number with halves (i.e. 0.5).

⁴ A studio apartment is an apartment that does not have a wall separating the sleeping area from the main kitchen and living area, and is generally smaller in size than a 1 bedroom apartment.

⁵ The number of parking spaces for 1 bedroom and studio apartments in the Double Bay Centre should be multiplied by the parking multiplier for non-residential uses in the Double Bay E1 zone.

For example, a dwelling on a small or narrow lot may not achieve the maximum number of on-site parking spaces if the arrangement of the spaces cannot meet the character, streetscape and location of garage requirements for the precinct. This is particularly relevant in the R2 Low Density Residential zoned areas.

However, in other instances where the maximum number of parking spaces is not achieved, the parking provided should not be substantially below the maximum rates. Where less than the maximum parking rate is proposed, justification must cover matters such as, but not limited to the matters listed in Section 1.2.2 (Matters the consent authority will consider).

Council will generally only support such proposals where the applicant can demonstrate that the development is unlikely to create significant additional demand for on-street parking in surrounding streets.

Providing more spaces than the number calculated using parking generation rates

Where an application proposes to provide more than the number of spaces specified in Table 1, justification must be provided and address such matters as, but not limited to:

- an explanation for additional residential parking demand based on lack of alternative transport options. For example, the proximity and frequency of public transport, availability of car share schemes, and topography;
- the impact of any increased building bulk on the streetscape;
- compliance with landscape area requirements;
- impact of any increased building bulk on the amenity of adjoining properties in terms of:
 - overshadowing
 - loss of views
 - overbearing appearance; and
- the amount of additional excavation and its impact on:
 - land form
 - structural integrity of structures and buildings on adjoining land
 - stability of land on the site and on adjoining sites
 - impact on water permeable ground surfaces arising from an increased building footprint and hard surface driveways.

E1.5 Non-residential parking

E1.5.1 Calculating required parking for non-residential uses

Non-residential parking generation rates

The parking generation rates in Table 2 set the minimum number of parking spaces to be provided for non-residential development. The parking rates are then modified by a multiplier if the development is located in a particular centre. The multipliers are set out in Table 3.

Variations to parking rates

In calculating the requirements for car parking for non-residential uses reference should also be made to the special provisions in Section E1.8, which identify circumstances where the requirements may vary in regards to:

- ▶ items of environmental heritage;
- ▶ mixed use developments;
- ▶ certain business zoned land in Paddington;
- ▶ business zoned land in Double Bay; and
- ▶ development for a health care professional in certain parts of Woollahra.

Change of use

Where there is an intensification of parking based on the parking rates of this chapter, the amount of parking required will equal the difference between the parking generated by the proposed development and the parking generated by the current use as calculated by the rates in this chapter.

Alterations and additions

For proposals involving additional floor space, required parking shall be calculated using the rate specified in this chapter.

New development

Where a building is to be totally demolished and replaced, parking will be provided at the rate specified in this chapter. No parking credits will be allowed for the current building and its use.

E1.5.2 Non-residential parking generation rates

The base parking generation rates set out in Table 2 are calculated per unit of gross floor area of a development.

In addition to the controls in this part of the DCP, the parking provision must be consistent with the desired future character for the centre or precinct where the development is proposed. (Refer to the Part D of this DCP on the business centres for any streetscape requirements and considerations.)

TABLE 2 Non-residential parking generation rates

Land use	Minimum parking generation rate
Commercial land uses	
Business premises	2.5 spaces per 100m ²
Retail premises	3.3 spaces per 100m ²
Entertainment facility	Parking rate to be determined on a site specific basis. A traffic and parking report must be submitted with applications for this use.
Food and drink premises ⁶	7 spaces per 100m ² Note: variations to these parking rates apply to restaurants or cafes in the Double Bay Centre and to certain business zoned land in Paddington (see Section E1.8).
Pub	Parking rate to be determined on a site specific basis. A traffic and parking report must be submitted with applications for this use.
Supermarkets	3.5 spaces per 100m ²
Registered club	Parking rate to be determined on a site specific basis. A traffic and parking report must be submitted with applications for this use.
Bowling club	Parking rate to be determined on a site specific basis. A traffic and parking report must be submitted with applications for this use.
Office premises	2.5 spaces per 100m ²
Hardware and building supplies Landscape and garden supplies Vehicle sales and hire premises ⁷ Veterinary hospital	3.3 spaces per 100m ²
Tourist and visitor accommodation	3 spaces per 100m ²
Bed and breakfast accommodation	One on-site parking space for the bed and breakfast accommodation. This is additional to the required car parking for the dwelling house, and subject to compliance with the precinct criteria for the location of garages.
Serviced apartment	See rates for residential flat buildings (Table 1)

⁶ For restaurants or cafes, the calculation of 'gross floor area' includes any outdoor seating areas, court yards and any other locations where patrons will be served, but excludes footpath dining areas provided the proposal complies with Council's policy for footway restaurants.

⁷ Calculation of 'gross floor area' includes any outdoor display area.

Land use	Minimum parking generation rate
Industrial land uses	
General industry	2.7 spaces per 100m ²
Light industry	3 spaces per 100m ²
Vehicle body repair workshop	6.75 spaces per 100m ²
Boat repair facility	6.75 spaces per 100m ²
Community land uses	
Child care centre	
Staff parking ⁸	0.5 spaces per 100m ²
Community facility	2 spaces per 100m ²
Educational establishment	1 space per 100m ² On-site parking for disabled persons is to be provided at a minimum rate of 1 car space per 50 car spaces or part thereof.
Tertiary establishment	In addition to the above, on-site parking is provided for students at a rate of one car space per 10 students.
Emergency services facility	3 spaces per 100m ²
Health services facility	2 spaces per 100m ²
Health consulting rooms	4.5 spaces per 100m ² Note: Variations to these parking rates apply to zoned land in the area bounded by Syd Einfield Drive, Edgecliff Road, Adelaide Street and Vernon Street, Woollahra (see Section E1.8.6).
Medical centre	5 spaces per 100m ²
Place of public worship	Parking rate to be determined on a site specific basis. A traffic and parking report must be submitted with applications for this use.
Public administration building	2.5 spaces per 100m ²

⁸ This rate applies only to staff parking. Separate requirements for an on-site pick-up and drop-off area are set out in Part F of this DCP, Chapter F1 Child Care Centres.

Land use	Minimum parking generation rate
Recreational land uses	
Recreational facility (indoor)	2 spaces per 100m ²
Marina ⁹	0.6 spaces per wet berth 0.2 spaces per dry storage and swing mooring 0.5 spaces per marina employee

E1.5.3 Parking multipliers

In some centres the base parking generation rate for non-residential uses is discounted to respond to the particular circumstances of areas in the municipality. These multipliers are set out in Table 3.

The multipliers take account of the availability of public transport or public parking facilities in an area, as well as reflect the planning strategies or policies which Council is pursuing for each centre or locality. The multipliers have been determined from an assessment of the car parking conditions in the area, and may be varied as car parking conditions and planning policies are reviewed.

The total number of parking spaces required following calculation of the multiplier should be rounded up to the nearest whole number.

Note: If the subject site is not located within a centre identified in Table 3, a multiplier does not apply.

⁹ Where variation to required parking is sought, a traffic and parking report is to be submitted with the development application. The requirements of the report are specified in the DA Guide.

TABLE 3 Parking multipliers for non-residential uses

Centre	Parking multiplier ¹⁰
Watsons Bay E1 Zone	0.6
Vaucluse Village E1 Zone	0.7
Rose Bay Centre E1 Zone	0.7
Rose Bay South MU1 Zone	0.6
Rose Bay North MU1 Zone	0.7
Bellevue Hill at Bellevue Rd and Victoria Rd E1 Zone	0.7
Double Bay Centre E1 Zone	0.6
Edgecliff Rd, Woollahra E1 Zone	0.6
Queen Street precinct MU1 and R2 Zone, between Ocean St and Oxford St and Moncur St, between Rush and James St	0.7
Oxford Street MU1 Zone including adjoining MU1 zoned properties, but excluding 12-94 and 3 63 William Street	0.7
Five Ways, Paddington E1 Zone	0.7
Edgecliff Commercial Core E1 Zone and New South Head Road Edgecliff commercial corridor MU1 Zone	0.6

¹⁰ The multiplier does not apply to the on-site pick-up area for a child care centre

E1.6 Bicycle parking and end-of-trip facilities

This section lists the minimum bicycle parking rates required for residential, commercial or industrial land uses.

E1.6.1 Calculating required bicycle parking

Change of use

Where there is an intensification of parking based on the parking rates of this chapter, the amount of parking required will equal the difference between the parking generated by the proposed development and the parking generated by the current use as calculated by the rates in this chapter.

Alterations and additions

For proposals involving additional floor space, required parking shall be calculated using the rate specified in this chapter.

New development

Where a building is to be totally demolished and replaced, parking will be provided at the rate specified in this chapter. No parking credits will be allowed for the current building and its use.

Objectives	Controls
O1 To provide adequate and sufficient bicycle parking facilities for the purposes of encouraging active transport.	C1 Bicycle parking provision for all developments must adhere to minimum bicycle parking rates in Table 4.
	C2 Bicycle parking must comply with the provisions and intent of <i>AS 2890.3 Bicycle Parking Facilities</i> in terms of security, accessibility and design specifications. Note: To assist with the design and installation of bicycle parking and end-of-trip facilities applicants and consultants should refer to the Austroads publication AP-R527-16 <i>Bicycle Parking Facilities: Guidelines for Design and Installation</i> .
O2 To provide sufficient end-of-trip facilities for non-residential land uses.	C3 One secure locker is provided for each bicycle parking space.
	C4 One shower and change cubicle is provided for between 5 and up to 10 bicycle parking spaces, two showers and change cubicles for 11-20 bicycle parking spaces and one

Objectives		Controls	
		additional shower and cubicle for each additional 10 bicycle parking spaces.	
O3	To provide parking facilities for electric bicycles.	C5	A charging point is provided for every five bicycle parking spaces.

E1.6.2 Bicycle parking rates

Table 4 below lists the on-site bicycle parking rates required for various land uses.

TABLE 4 Bicycle parking rates

Land use	Minimum bicycle parking rates ¹¹	
	Residents/Employees	Customers/Visitors
Residential		
Residential accommodation ¹²	1 per dwelling	1 per 10 dwellings
Tourist and Visitor Accommodation		
Serviced apartments, hotel or motel accommodation	1 per 4 staff	1 per 20 rooms
Backpackers' accommodation	1 per 4 staff	1 per 10 beds
Commercial		
Office / business premises	1 per 150m ² GFA	1 per 400m ² GFA
Bulky goods premises	1 per 600m ² GFA	1 per 1,000m ² GFA
Shop, restaurant or cafe	1 per 250m ² GFA	2 + 1 per 100m ² over 100m ² GFA
Shopping centre	1 per 200m ² GFA	1 per 1,000m ² GFA
Pub	1 per 100m ² GFA	1 per 100m ² GFA
Entertainment facility	-	Greater of 1 per 15 seats or 1 per 40m ² GFA

¹¹ Round up to nearest whole number with halves (i.e. 0.5).

¹² Residential uses with individual garages or secure storage spaces for each dwelling that can accommodate a Class 1 bike locker under AS2890.3 Part 3: *Bicycle parking* will not require additional space for bicycle parking.

Land use	Minimum bicycle parking rates ¹¹	
	Residents/Employees	Customers/Visitors
Place of public worship	-	Greater of 1 per 15 seats or 1 per 40m ² GFA
Industry		
Industry, warehouse or distribution centre	1 per 10 staff	-
Community		
Child care centre	1 per 10 staff	2 per centre
Health care facilities and hospitals	1 per 15 staff	1 per 200m ²
Medical centre, health consulting rooms	1 per 5 practitioners	1 per 200m ² GFA
Educational establishments	1 per 10 staff	1 per 20 students
Tertiary educational institution	1 per 10 staff	1 per 10 students
Recreation facilities (indoor) and Recreation facilities (outdoor)	1 space per 15 staff	1 per 15
Swimming pool	1 per 10 staff	1 per 40m ² of recreation area
Community facility	1 per 10 staff	2 + 1 per 200m ² of GFA

In addition:

- Where a proposed use is not included in the table above, an applicant is to provide bicycle facilities according to Council requirements.

E1.7 Motorcycle parking rates

Motorcycles are defined as any powered two-wheel vehicle, including motorbikes, scooters and mopeds.

E1.7.1 Calculating required motorcycle parking

Change of use

Where there is an intensification of parking based on the parking rates of this chapter, the amount of parking required will equal the difference between the parking generated by the proposed development and the parking generated by the current use as calculated by the rates in this chapter.

Alterations and additions

For proposals involving additional floor space, required parking shall be calculated using the rate specified in this chapter.

New development

Where a building is to be totally demolished and replaced, parking will be provided at the rate specified in this chapter. No parking credits will be allowed for the current building and its use.

Objectives		Controls	
O1	To provide adequate and sufficient motorcycle parking	C1	Developers shall provide a minimum of 1 motorcycle parking space per 10 car spaces for all types of development. ¹³
		C2	Motorcycle parking spaces must have a minimum dimension of 1.2m x 2.5m.
		C3	Motorcycle parking areas shall be located close to the pedestrian access of the development.

¹³ Round up to nearest whole number with halves (i.e. 0.5).

E1.8 Variations to the parking generation rates

E1.8.1 Application of variations

The variations to parking generation rates in section E1.8 apply to car parking, bicycle parking and motorcycle parking.

E1.8.2 Items of the environmental heritage

In considering a development application involving a heritage item listed in Schedule 5 of Woollahra LEP 2014, Council may vary the parking requirements of this chapter, but only if conservation of the heritage values relies on the variation.

Under clause 5.10 (4) of Woollahra LEP 2014, the consent authority must, before granting consent in respect of a heritage item or heritage conservation area, consider the effect of the proposed development on the heritage significance of the item or area concerned.

E1.8.3 Mixed use developments

For mixed use developments, Council may support a reduction in the total required number of non-residential parking spaces where the applicant can demonstrate to the satisfaction of Council that:

- overlapping parking demand will occur for different uses; or
- complementary use of spaces will occur for uses with different peak parking demand times.

E1.8.4 Certain land in Paddington zoned MU1 Mixed Use

This section applies to land zoned MU1 Mixed Use in the Paddington business precinct in Oxford Street and the streets adjoining and in the vicinity of Oxford Street, excluding land at 12-94 and 3-63 William Street, 83 and 85 Underwood Street and 2 Hopetoun Avenue.

Change of use to a shop

Council will not require additional off-street parking for a change of use from a shop to another shop, or from a commercial premise to a shop, provided the proposal is within an existing building.

The area of a premises used for ancillary purposes such as storage, staff amenities, offices, fitting rooms and workrooms, will not be included as floor area for the purposes of car parking calculations.

Change of use to a restaurant or cafe

Council will not require additional off-street parking for proposals within an existing building and its site (such as an external courtyard) involving a change of use from a shop or commercial premises to a restaurant or café.

E1.8.5 Business zoned land in Double Bay

This section applies to land within the Double Bay Centre as identified in Chapter D5 Double Bay Centre of this DCP.

Change of use

Council will not require additional off-street car parking or require a contribution under Council's Section 94 Contributions Plan for a change of use, provided the proposal does not result in a net increase in gross floor area.

Change of use: restaurants or cafes

Council will not require additional off-street parking for proposals within an existing building and its site (such as an external courtyard) involving a change of use from a shop or commercial premises to a restaurant or café.

Footpath dining

Council will not require additional off-street car parking or require a contribution under Council's Section 94 Contributions Plan for proposed outdoor eating areas on public footpaths, provided the proposal complies with Council's policy for footway restaurants.

Studio and one bedroom apartments

The calculation of on-site parking for studio and one bedroom apartments is to include the parking multiplier for non-residential development as specified in Section E1.5.3.

E1.8.6 Health care professional uses in Edgecliff Road, Adelaide Street and Vernon Street, Woollahra

For residential zoned land in the area bounded by Syd Einfeld Drive, Edgecliff Road (southern side), Adelaide Street (western side) and Vernon Street (both sides) the rate in Table 2 does not apply. Instead the maximum number of spaces to be provided is:

- 1 space for 1 health care professional; and
- 2 spaces for 2 or 3 health care professionals.

E1.9 Special provisions

E1.9.1 Car parks with 20 or more spaces

Where more than 20 car parking spaces are provided on-site, the parking is to be accommodated undercover or in a basement area. This requirement applies to both residential and non-residential development.

(Refer to Part E of the DCP, Chapter E2 Stormwater and Flood Risk Management for flood planning levels associated with below ground parking.)

E1.9.2 Car share

Car sharing services allow a large number of people to utilise the same vehicle at different periods, reducing the number of vehicles and parking spaces required while still providing the benefits of car ownership.

Objectives		Controls	
O1	To reduce the reliance on private vehicles and the corresponding traffic impact on the road network	C1	On-site car share may be permitted on a site-by-site basis at the discretion of Council. Each car share parking space has the potential to replace a maximum of 4 regular car parking spaces.
O2	To facilitate public use of car share vehicles		
O3	To increase uptake and awareness of car share vehicles	C2	Where a commercial car share space is proposed, the applicant is to include a letter from a commercial car share operator confirming their intention to place a car share vehicle within the development.
		C3	Nominated commercial car share spaces must be placed in publicly accessible locations within the development.

E1.9.3 Tandem parking

Tandem parking is generally not preferred by Council but will be considered it in exceptional circumstances.

In residential development, tandem parking will only be permitted if the two spaces in tandem are allocated to a single dwelling.

In non-residential developments, the use of tandem parking to satisfy long stay parking demand requirements may be permitted where it is not physically possible to provide parking spaces in a side-by-side configuration. However, the tandem spaces must be for employee use only.

Tandem spaces must satisfy the parking and access design standards in Section E1.10.

E1.9.4 Health consulting rooms

The following requirements apply to medical consulting rooms:

- ▶ Parking areas should be provided at the rear of properties. These areas may be covered only if they meet all relevant heritage conservation area controls, residential precinct controls and general development controls.
- ▶ Parking areas, either covered or uncovered, may be provided at the front of properties but only if they meet all relevant heritage conservation area controls, residential precinct controls and general development controls.
- ▶ Parking areas are not to be enclosed by gates, doors or roller shutters during business hours. Requirements may be imposed by Council in relation to boundary fencing to facilitate vehicular access to parking spaces.
- ▶ Parking areas to serve medical consulting rooms are to be landscaped in accordance with a landscape plan. Applicants should contact Council's Open Space and Trees section to determine appropriate plant species for landscaping purposes.

E1.9.5 Parking spaces for people with a disability

- ▶ Accessible parking spaces must be provided at a rate in accordance with Part D3.5 of the Building Code of Australia.
- ▶ Council may require additional parking spaces for people with disabilities above the rates stated in Part D3.5 of the Building Code of Australia as a condition of consent.

E1.9.6 Small car parking spaces

- ▶ Small car parking spaces are permitted in public car parks but must constitute less than 5% of the overall number of parking spaces.
 - ▶ Dimensions for small car parking spaces must be in accordance with Australian Standard AS/NZS 2890.1 Off-street car parking.
-

E1.9.7 Resident Parking Scheme (RPS) Areas

Resident Parking Schemes (RPS) provide preferential access to on-street parking for residents who do not have sufficient off-street parking. Where a development increases dwelling density, extending the RPS to new residents may lead to an under-supply of on-street car parking. To avoid this, occupants of the additional dwellings are not eligible for on-street parking permits.

- Where a development increases dwelling density, occupants of the additional dwelling(s) are not permitted access to resident parking schemes.

E1.10 Parking and access design standards

E1.10.1 Design and use of parking areas

Parking areas are to be designed to function solely for the purpose of parking vehicles. Space for waste receptacles and storage should be located so that it does not reduce the amount and effective operation of parking.

E1.10.2 Australian Standards

The following minimum requirements are based on the Standards Association of Australia, and Council's experience with development in the Municipality.

In implementing this DCP the following Australian Standards¹⁴ apply for the design of parking and loading facilities, unless otherwise specified:

- AS/NZS 2890.1 Part 1: Off-street car parking;
- AS 2890.2 Part 2: Off-street commercial vehicle facilities;
- AS 2890.3 Part 3: Bicycle parking;
- AS 2890.5 Part 5: On-street parking; and
- AS/NZS 2890.6 Part 6: Off-Street parking for people with disabilities.

The size of parking bays, the width of the aisles and the location of columns, poles, walls or other physical barriers are to be based on providing adequate manoeuvring area for access to parking bays and adequate clearance for opening vehicle doors once the vehicle is parked.

E1.10.3 Car parking space and bay size

Minimum bay width and length dimensions are to comply with AS/NZS 2890.1 and AS 2890.2.

¹⁴ The most recent version of Australian Standards should be used.

E1.10.4 Ramps and primary aisles

The minimum dimensions for the design of ramps and primary aisles which do not have direct access to or from parking bays are shown in AS/NZS 2890.1 - Section 2.5 Design of Circulation Roadways and Ramps.

The ramp grading is to be designed to ensure that the breakover angle coming onto, or off, a ramp is not so severe as to cause scraping of a vehicle undercarriage. Design of ramps and gradients will be consistent with AS/NZS 2890.1.

E1.10.5 Turning paths

The design of turning paths for manoeuvring, parking space access and aisle designs are set out in AS/NZS 2890.1 Appendix B Section B3 Swept Paths for cars (for the B85 vehicle) and AS 2890.2 Part 2: Off-section street commercial vehicle facilities.

Some laneways or narrow streets do not have sufficient turning space for B85 vehicles. The removal of on-street parking to establish a turning space into private property should be avoided and will only be considered in the following circumstances:

- ▶ no more than a maximum of 5.4m of on-street parking, measured at the kerb line, is removed to provide for a turning space;
- ▶ the use and quantity of the remaining on-street parking spaces is not adversely affected; and
- ▶ 5.4m is a maximum. If Council can demonstrate that a B85 vehicle can access and egress the site with the removal of less than 5.4m of on-street parking, then this lesser amount is all that will be approved.

Consideration will be given to the approval of proposed off-street car parking spaces (as set out in AS/NZS 2890.1) that are unable to be accessed by a B85 vehicle in private car parks in relation to the above points only if:

- ▶ the site is in the Paddington or Woollahra Heritage Conservation Area see Part C, Chapters C1 and C2), and
- ▶ the site has rear lane access, and
- ▶ no on-street parking is lost (i.e. the zero net loss argument cannot be applied), and
- ▶ all applicable controls in Part C Chapters C1, and C2 are met to the Council's satisfaction.

Note: On-site parking in the Paddington and Woollahra Heritage Conservation Areas is not mandatory. On-site parking may only be permitted or required when specified controls set out in Part C Chapters C1 (Paddington HCA) and C2 (Woollahra HCA) are satisfactorily met.

E1.10.6 Driveways and access points

The following requirements apply to the siting and design of driveways:

- The design of driveways and access points, except for dwelling houses, is to be such that vehicle entry and exit from a site, onto a public road, is made by driving in a forward direction, unless otherwise required by Council.
- All driveways, except for dwelling houses, are signposted indicating 'IN/ENTRANCE', 'OUT/EXIT' and 'KEEP LEFT' as appropriate.
- Driveways are situated so that any vehicle turning from, or into, the street can be readily seen by the driver of an approaching motor vehicle or pedestrian.
- Access driveway locations comply with Figure 3.1 in Section 3.2.3 of AS/NZS 2890.1.
- Driveway splays shall be provided in accordance with Figure 3.3 in Section 3.2.4 of AS/NZS 2890.1. Exceptions to this may be accepted in the following circumstances:
 - for dwelling house, dual occupancies and attached dwellings in residential zones in low pedestrian activity locations¹⁵ a fence to a maximum height of 0.9m is permitted in the splay area.
 - where an object in the adjoining property creates an obstruction to visibility within the splay area.

Note: Driveway construction on Council's roads will require the submission of a Section 138 of the *Roads Act 1993* application. The form is available on the Council website. A copy of Council's standard drawing for driveways is available with the application.

- The width of internal access driveways are to comply with Section 3.2 of AS/NZS 2890.1 regarding driveway access requirements. Wider internal driveway widths may be acceptable depending on the site conditions. A passing bay is to be provided where the driveway length exceeds 40m.
- Vehicular access to an ancillary dwelling is provided from the same vehicular crossing for the principal residence.
- Where possible, all car parking and garage structures are located at the rear, with access from the rear lane or side driveway.
- Car parking and driveway areas are located and designed to:
 - enable the efficient use of car spaces and accessways, including safe manoeuvrability for vehicles between the site and street;
 - fit in with any adopted street hierarchy and objectives of the hierarchy and with any related local traffic management plans;
 - preserve significant trees and vegetation; and
 - complement the desired future character for the locality as described in the residential chapters of this DCP.
- Vehicle crossings are constructed at an angle of 90° to the carriageway of the road. Vehicle crossings must take the shortest route across the footpath, between the kerb and boundary.

¹⁵ Low pedestrian activity locations are areas away from schools, commercial centres or other locations that generate pedestrian activity.

- ▶ The width of vehicle crossings is minimised so as to retain on-street parking. Footpath crossings will not be permitted where:
 - One off-street parking space will result in the loss of two on-street parking spaces. For example, where the street is narrow with parking on both sides.
 - The provision of off-street parking will result in the loss of a significant tree.
- ▶ Vehicle crossings are located to minimise the loss of useable on-street parking. That is, they are located immediately adjacent to the adjoining property's vehicle crossing (0m) or a minimum distance of one on-street car parking space (5.4m) from any existing driveway crossing.

E1.10.7 Signposting

Parking areas, including visitor parking spaces, should be well signposted to indicate the availability of off-street parking, with entry and exit points clearly visible from both the street and the site.

Pavement bay delineation, arrows and other pavement markings are to be marked using white paint. Details of all proposed signposting and linemarking of parking areas are to be submitted with the development application.

E1.10.8 Landscape plan

A landscape plan should be submitted with the development application showing the dimensions, levels, existing vegetation and position, type and characteristics of all proposed landscaping and plant material.

In particular, the plan should address the following:

- ▶ Screening: Uncovered car parking areas should be adequately and appropriately screened and landscaped by the planting of shrubs and shade trees.
- ▶ Water runoff: An open texture surface material should be used to reduce water run-off from parking areas.

E1.10.9 Drainage of car parking areas

Drainage of car parking areas must be consistent with Council's provisions in Part E of the DCP, Chapter E2 Stormwater and Flood Risk Management.

E1.11 Electric vehicle charging equipment

The controls for electric vehicle (EV) charging equipment and infrastructure encourage and support the increased use of electric vehicles by ensuring the installation of appropriate EV charging equipment and EV ready parking spaces.

The controls will require all types of residential and non-residential development to be designed and constructed with appropriate electrical infrastructure to facilitate the future installation of EV charging equipment in all parking spaces.

For certain types of residential and non-residential development a minimum number of EV chargers must be installed.

Section J9D4 'Facilities for electric vehicle charging equipment' in the *National Construction Code (NCC) 2022 Volume One - Building Code of Australia* contains details for the provision and design of distribution boards to support EV charging equipment in car parks.

Objectives	Controls
O1 To encourage and support increased usage of electric vehicles.	C1 Ensure that 100% of car spaces in all off-street parking of new residential and non-residential developments have electrical infrastructure to accommodate a 7kW (32A) EV charger in the future.
O2 To provide the electrical infrastructure required to facilitate increased future usage of EV charging equipment in residential and non-residential development.	This must include: a) Ensuring adequate electrical capacity and infrastructure (cable size, distribution board size etc.) for the installation of EV charging equipment in accordance with NCC requirements, and b) Providing either cable trays or buried cables to allow sufficient power and communications from a dedicated EV distribution board within 5m of all car spaces. C2 Minimum electric circuitry for EV charging equipment is required to be a minimum rated power output of 7kW(32A). C3 The installation of EV charging equipment with a minimum rated power output of 7kW(32A) is encouraged for new dwelling houses, semi-detached dwellings or dual occupancies.

Objectives	Controls
	C4 All new residential development (other than for dwelling houses, semi-detached dwellings or dual occupancies) must install EV charging equipment to: a) 20% of the total car parking spaces assigned to residential lot owners (minimum 1), and b) 25% of visitor car parking spaces (minimum 1). Note: The total number of parking spaces is to be rounded up to the nearest whole number. C5 All new non-residential development must install EV charging equipment to 20% of the total car parking spaces (minimum 1). Note: The total number of parking spaces is to be rounded up to the nearest whole number. C6 The installation of fast-charging EV charging equipment is encouraged for visitor parking in non-residential development such as commercial premises, where the gross floor area exceeds 1,000 square metres. Fast charging EV equipment should have a minimum rated power output greater than 22kW (32A). C7 The development application should provide the following information: a) EV charging supplier manufacturer documentation, including information to demonstrate compliance with C1, C2, C4 and C5, where applicable, b) EV charging equipment and infrastructure must be identified on an electrical plan, or equivalent, and

Objectives	Controls
	c) Car parking spaces with EV charging equipment identified on architectural plans, or equivalent. C8 All works will be undertaken by appropriately licenced persons and in keeping with relevant standards and regulations.

E1.12 Green Travel Plans

A green travel plan provides information to users of the development on how to reach the site via active and public transport. Usually only developments of significant size require a green travel plan. However, any developer may elect to provide a green travel plan to reduce vehicle use.

Objectives	Controls
O1 To ensure green travel plans are provided with certain developments.	C1 Developments which exceed the threshold values listed in Section E1.12.1 will require a green travel plan.
O2 To ensure the targets set out by the green travel plan are reasonable and practical.	C2 Council will review the targets laid out by the green travel plan before implementation.
O3 To ensure responsibility for implementing the green travel plan is held by a representative within the organisation or company.	C3 The address and contact details of a contact person shall be provided. The contact person will be responsible for implementing and enforcing the green travel plan.
O4 To monitor and review the effectiveness of the green travel plan.	C4 After implementation of the green travel plan, annual reports will be required to provide information on the number of people trips, travel modes by time of day, journey purpose and origin/destination of trips for a minimum of 5 years post occupation.

E1.12.1 Green travel plan thresholds

A green travel plan is required for development listed below:

- ▶ Educational establishments allowing an additional 100 students.
- ▶ Non-residential developments with a gross floor area of 2,000m² or more.
- ▶ Residential developments which provide 50 or more additional dwellings.

E1.13 Operational traffic management plan

Operational traffic management plans are required for certain major developments that are likely to impose a significant impact on the surrounding road network.

E1.13.1 Operational traffic management plan for non-residential developments

An operational traffic management plan (OTMP) is required for developments under clause 104 and Schedule 3 of *State Environmental Planning Policy (Infrastructure) 2007* or classified as designated developments under s.77A of the EP&A 1979.

Otherwise, Council may require an OTMP for the following developments:

- Child care centres.
- Drive-in take-away food outlets.
- Education facilities.
- Entertainment facilities.
- Health care facilities.
- Hotel and motel accommodation.
- Industrial premises.
- Public car parks.
- Places of public worship.
- Pubs.
- Recreation and tourist facilities.
- Registered clubs.
- Retail premises comprising supermarkets and or shopping centres.
- Service stations.
- Other developments. (Generally if there is significant expansion or modification).

E1.13.2 Details an operational traffic management plan

The minimum details for an operational management plan are:

- Existing and proposed traffic generation.
- Information on the existing and proposed road network, routes and access locations.
- Details of site operations including peak hours, speed zones and forecast traffic flows.
- On-street/off-street parking.
- Details on public and active transport.

- ▶ Traffic control plans (if required).

E1.14 Off-street loading and servicing facilities

Off-street loading and servicing arrangements may need to be provided for businesses, commercial, industrial, office, retail and storage uses, and any other use where regular deliveries of goods are made to or from the site.

E1.14.1 Number of loading bays required

The following developments will generally be required to provide a minimum of one loading bay:

- ▶ retail premises (such as a supermarket) that require delivery of large items or pallets of goods;
- ▶ hotel, motel or serviced apartment accommodation;
- ▶ registered clubs or bowling clubs;
- ▶ hardware, building, landscape and garden supplies;
- ▶ warehouse or distribution centre;
- ▶ food and drink premises or pubs with a seating capacity of 50 persons;
- ▶ bulky goods premises;
- ▶ educational establishments;
- ▶ emergency services or health services facilities; and
- ▶ marinas or boat repair facilities.

Council may require additional or less loading bays depending on the scale and type of use, having particular regard to the anticipated volume and frequency of deliveries associated with the proposed development, and the availability and suitability of any existing on street 'loading zone' located directly in front of, or at the side of, the premises.

E1.14.2 Location and design of loading bays

- ▶ Loading bays and service areas should operate independently of other parking areas and should be situated to ensure that all service vehicles stand entirely on the site of the premises during loading and unloading operations.
- ▶ Vehicles will generally be required to enter and exit the site in a forwards direction.
- ▶ Service areas and loading docks should be designed to cater for the vehicles and servicing operations anticipated to occur in a particular development. Loading facilities and service areas should be visually unobtrusive and preferably:
 - located via a rear lane or side street, where such access is available;
 - located within the building envelope; and
 - designed to be perpendicular to lane frontage.

- Designs should comply with AS 2890.2 Part 2: Off-street commercial vehicle facilities and should accommodate the largest design vehicle to service the site.

E1.15 Mechanical parking installations and paid parking stations

E1.15.1 Locations and land use

Mechanical parking installations such as car lifts and car stackers are generally not desirable, and will only be considered in exceptional circumstances.

Mechanical parking installations may be permitted for residential and non-residential development where one or more of the following applies:

- The topography, groundwater level, or lot size does not reasonably allow a simpler, more conventional parking arrangement.
- An existing building is being refurbished and there is no land available for additional parking. Refurbishment does not include extension of the building so as to increase site coverage or any other works to increase site coverage, all of which have the effect of reducing site area which could be used for conventional parking arrangements.
- In the case of non-residential development, the installations are for long-stay parking.
- In the case of residential development, the inclusion of mechanical parking installations reduces excavation in order to uphold the excavation controls and objectives set out in Chapter B3 (section B3.4) of this DCP.
- In the case of residential development, the installations are for resident rather than visitor parking.

E1.15.2 Compliance with the Australian Standards

Vehicle access to the mechanical parking installation must be made in accordance with AS/NZS 2890.1 (2004).

Where there is one car lift proposed, this must be capable of accommodating a B99 vehicle.

Where multiple car lifts are proposed, one car lift must be capable of accommodating a B99 vehicle and the remaining lifts must be capable of accommodating a B85 vehicle.

E1.15.3 Waiting bays

- The design must include sufficient size to ensure that vehicles queuing to enter the mechanical parking installation or paid parking station does not extend beyond the property boundary. Vehicles must not wait on the footpath or roadway.
- The waiting bay(s) must be adequately sized to enable vehicle(s) to wait, while another vehicle exits the site. It is not acceptable for waiting vehicle(s) to reverse onto the footpath to enable another vehicle to manoeuvre off the site.
- The minimum length of each waiting bay is 6m.

- ▶ Waiting bays must not exceed a maximum grade of 1 in 20 (5%).
- ▶ Waiting bays must not obstruct the driveway.

E1.15.4 Car parks with more than 25 vehicles

If a car lift is providing access to a car parking area with more than 25 parking spaces, then two separate car lifts must be provided.

E1.15.5 Residential visitor parking

Residential visitor parking must be provided external to the mechanical parking installation.

E1.15.6 Access

Where a development is required to provide parking for people with a disability, a mechanical parking installation must allow people with a disability to exit in the event of breakdown or failure.

E1.15.7 Development application information

A report from a suitably qualified traffic consultant is required for any development application that proposes a mechanical parking installation or paid parking station relating to the parking of three or more cars.

As a minimum, the report should provide a queuing analysis, taking into account:

- ▶ the proposed peak hour vehicle volumes;
- ▶ the service rate (in seconds) associated with the proposed parking equipment; and
- ▶ the number of on-site waiting bays required to accommodate the 98th percentile queue at peak traffic levels.

The development application should also include the following information:

- ▶ details of required servicing and ongoing maintenance;
- ▶ internal and external dimensions of the device;
- ▶ details of the noise output of the device; and
- ▶ manufacturer's documentation, including information on service rates.